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POOLS 2-3 (B) OWNER, LLC, and MISSION
7 ROCK RESIDENTIAL CALIFORNIA, INC.

ELECTRONICALLY
FILED

Superior Court of California,
County of San Francisco

04/11/2025
Clerk of the Court

BY: SAHAR ENAYATI

Deputy Clerk

8 SUPERIOR COURT OF THE STATE OF CALIFORNIA

9 CITY AND COUNTY OF SAN FRANCISCO

10
11 TANNER PIKOP,

12 Plaintiff,

13 vs.

14 SF MULTIFAMILY POOLS 2-3 (B)
OWNER, LLC, SF MULTIFAMILY III
15 PROPERTY OWNER, LLC, BRICK AND
TIMBER, INC., aka BRICK + TIMBER,
16 INC., A California Corporation, MISSION
ROCK RESIDENTIAL CALIFORNIA, INC.
17 and DOES 1 through 50,

18 Defendants.

CASE NO. CGC-24-620191

**ANSWER OF DEFENDANTS SF
MULTIFAMILY POOLS 2-3 (B) OWNER,
LLC, and MISSION ROCK
RESIDENTIAL CALIFORNIA, INC.**

Complaint Filed: December 2, 2024
Trial Date: None Set

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20 COMES NOW SF MULTIFAMILY POOLS 2-3 (B) OWNER, LLC, and MISSION
21 ROCK RESIDENTIAL CALIFORNIA, INC. ("Defendants") in answer to the Complaint of
22 Plaintiff TANNER PIKOP (hereinafter "Plaintiff").

23 **GENERAL DENIAL**

24 Defendants deny generally and specifically, each and every, all and singular, the
25 allegations of said Complaint, and each cause of action thereof, and further denies that Plaintiff
26 has been damaged in any sum or sums or at all.

27 WHEREFORE, Defendants pray for judgment as hereinafter set forth.

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FIFTH AFFIRMATIVE DEFENSE

(Statute of Limitations)

As a fifth affirmative defense to each cause of action of the Complaint, Defendants allege that Plaintiff’s Complaint and causes of action therein are barred by the applicable statute of limitations, including but not limited to Code of Civil Procedure sections 335.1, et seq.

SIXTH AFFIRMATIVE DEFENSE

(Failure to Mitigate)

As a sixth affirmative defense to each cause of action of the Complaint, Defendants allege that Plaintiff failed to mitigate his damages.

SEVENTH AFFIRMATIVE DEFENSE

(Unclean Hands)

As a seventh affirmative defense to each cause of action of the Complaint, Defendants allege that Plaintiff is barred from any relief by the equitable doctrine of unclean hands.

EIGHTH AFFIRMATIVE DEFENSE

(Estoppel/Waiver)

As an eighth affirmative defense to each cause of action of the Complaint, Defendants allege that, by reason of Plaintiff’s own acts, omissions, representations, and courses of conduct, Plaintiff is estopped from asserting, and have waived, any right to assert claims against Defendant.

NINTH AFFIRMATIVE DEFENSE

(No Duty)

As a ninth affirmative defense to each cause of action of the Complaint, Defendants allege that it owed no duty or obligation to Plaintiff.

TENTH AFFIRMATIVE DEFENSE

(No Causation)

As a tenth affirmative defense to each cause of action of the Complaint, Defendants allege there is no causal relationship between any injuries or damages allegedly sustained by Plaintiff and any alleged wrongful act by Defendant.

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1 **ELEVENTH AFFIRMATIVE DEFENSE**

2 **(Laches)**

3 As an eleventh affirmative defense to each cause of action of the Complaint, Defendants
4 allege that, due to tardiness in asserting their purported right to recover, Plaintiff's claims should
5 be barred by the equitable doctrine of laches.

6 **TWELFTH AFFIRMATIVE DEFENSE**

7 **(Misjoinder)**

8 As a twelfth affirmative defense to each cause of action of the Complaint, Defendants
9 allege there is a defect or misjoinder of parties pursuant to Code of Civil Procedure
10 section 430.10, subsection (d). Specifically, Plaintiff failed to join all parties necessary for final
11 determination of the action.

12 **THIRTEENTH AFFIRMATIVE DEFENSE**

13 **(Several Liability of Non-Economic Damages)**

14 As a thirteenth affirmative defense to each cause of action of the Complaint, Defendants
15 allege the provisions of the "Fair Responsibility Act of 1986" (commonly known as Proposition
16 51, Civil Code sections 1430, 1431, 1431.1, 1431.2, 1431.3, 1431.4, 1431.5 and 1432) are
17 applicable to this action to the extent that Plaintiffs' injuries and damages, if any, were legally
18 caused or contributed to by the negligence or fault of persons or entities other than Defendants.

19 **FOURTEENTH AFFIRMATIVE DEFENSE**

20 **(Uncertainty)**

21 As a fourteenth affirmative defense to each cause of action of the Complaint, Defendants
22 allege the Complaint and each cause of action therein are uncertain.

23 **FIFTEENTH AFFIRMATIVE DEFENSE**

24 **(Cause in Fact)**

25 As a fifteenth affirmative defense to each cause of action of the Complaint, Defendants
26 allege that Plaintiff cannot prove any facts showing that Defendants' conduct was the cause in fact
27 of any alleged injuries or damages suffered by Plaintiff as alleged in the Complaint.

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1 **SIXTEENTH AFFIRMATIVE DEFENSE**

2 **(Proximate Cause)**

3 As a sixteenth affirmative defense to each cause of action of the Complaint, Defendants
4 allege that Plaintiff cannot prove any facts showing that Defendants' conduct was the proximate
5 cause of any injuries or damages as alleged in the Complaint.

6 **SEVENTEENTH AFFIRMATIVE DEFENSE**

7 **(Intervening and Superseding Actions)**

8 As a seventeenth affirmative defense to each cause of action of the Complaint, Defendants
9 allege that any damages or injuries suffered by Plaintiff were proximately caused by the
10 intervening and superseding actions on the part of other parties, and not Defendants, and that such
11 intervening and superseding actions on the part of other parties bar recovery herein on behalf of
12 Plaintiff against Defendants.

13 **EIGHTEENTH AFFIRMATIVE DEFENSE**

14 **(Insufficient Basis for Attorney Fees)**

15 As an eighteenth affirmative defense to each cause of action of the Complaint, Defendants
16 allege that Plaintiff's allegations and any evidence offered to support such allegations does not
17 support an award of attorney fees.

18 **NINETEENTH AFFIRMATIVE DEFENSE**

19 **(Not a Substantial Factor)**

20 As a nineteenth affirmative defense to each cause of action of the Complaint, Defendants
21 allege the Complaint and each cause of action therein is barred on the grounds that the conduct
22 referred to in Plaintiff's Complaint was not a substantial factor in bringing about the injuries and
23 damages complained of by Plaintiff and did not increase the risk that Plaintiff would suffer the
24 injuries and damages complained of.

25 **TWENTIETH AFFIRMATIVE DEFENSE**

26 **(Contribution and Indemnification)**

27 As a twentieth affirmative defense to each cause of action of the Complaint, Defendants
28 allege they are entitled to a right of indemnification by apportionment and to a right of

1 contribution from any person or entity whose negligence proximately contributed to the happening
2 of the alleged injuries of Plaintiff if Plaintiff should receive a verdict against Defendants.

3 **TWENTY-FIRST AFFIRMATIVE DEFENSE**

4 **(Compliance with Law)**

5 As a twenty-first affirmative defense to each cause of action of the Complaint, Defendants
6 allege that at all times relevant herein, the conduct of Defendants alleged in the Complaint
7 conformed to all applicable statutes, governmental regulations, and industry standards applicable
8 thereto.

9 **TWENTY-SECOND AFFIRMATIVE DEFENSE**

10 **(Consent)**

11 As a twenty-second affirmative defense to each cause of action of the Complaint,
12 Defendants allege that Plaintiff gave his consent, express or implied, to the alleged acts,
13 omissions, and/or conduct of Defendants.

14 **TWENTY-THIRD AFFIRMATIVE DEFENSE**

15 **(Conduct was Privileged)**

16 As a twenty-third affirmative defense to each cause of action of the Complaint, Defendants
17 allege that it's conduct with regard to the Plaintiff was privileged and justified.

18 **TWENTY-FOURTH AFFIRMATIVE DEFENSE**

19 **(Failure to Perform Conditions Precedent)**

20 As a twenty-fourth affirmative defense to each cause of action of the Complaint,
21 Defendants allege that Plaintiff failed to perform contractual conditions precedent to Defendants'
22 performance, and such failure excuses any nonperformance by Defendants.

23 **TWENTY-FIFTH AFFIRMATIVE DEFENSE**

24 **(Good Faith)**

25 As a twenty-fifth affirmative defense to each cause of action of the Complaint, Defendants
26 allege that Plaintiff's claims are barred because Defendants acted reasonably and in good faith at
27 all times based on all relevant facts and circumstances known by them.

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1 **TWENTY-SIXTH AFFIRMATIVE DEFENSE**

2 **(No Notice of Alleged Breach of Warranty of Habitability)**

3 As a twenty-sixth affirmative defense to each cause of action of the Complaint, Defendants
4 allege that Plaintiff failed to give adequate notice of the alleged breach of the warranty of
5 habitability, and therefore Plaintiff's claims are barred.

6 **TWENTY-SEVENTH AFFIRMATIVE DEFENSE**

7 **(No Opportunity to Cure)**

8 As a twenty-seventh affirmative defense to each cause of action of the Complaint,
9 Defendants allege that it was not provided a reasonable opportunity to cure the defects alleged in
10 Plaintiff's Complaint.

11 **TWENTY-EIGHTH AFFIRMATIVE DEFENSE**

12 **(Punitive Damages)**

13 As a twenty-eighth affirmative defense to each cause of action of the Complaint,
14 Defendants allege that any award of punitive damages to the Plaintiff in this case would violate the
15 procedural and/or substantive safeguards provided to Defendants under the Fifth, Sixth, Eighth
16 and/or Fourteenth Amendments to the Constitution of the United States.

17 **TWENTY-NINTH AFFIRMATIVE DEFENSE**

18 **(Punitive Damages)**

19 As a twenty-ninth affirmative defense to each cause of action of the Complaint, Defendants
20 allege that, inasmuch as Plaintiff asserts a claim for punitive damages, an award of such damages
21 should be denied for the reason that such an award violates the due process requirements of the
22 Fourteenth Amendment and/or Fifth Amendment of the Constitution of the United States of
23 America and the comparable provisions of the California Constitution.

24 **THIRTIETH AFFIRMATIVE DEFENSE**

25 **(Insufficient Basis for Punitive Damages)**

26 As a thirtieth affirmative defense to each cause of action of the Complaint, Defendants
27 allege that Plaintiff's allegations and any evidence offered to support such allegations does not
28 support an award of punitive damages.

1 **THIRTY-FIRST AFFIRMATIVE DEFENSE**

2 **(Reservation of Right for Additional Defenses)**

3 As a twenty-eighth affirmative defense to each cause of action of the Complaint,
4 Defendants presently have insufficient knowledge or information on which to form a belief as to
5 whether they may have additional, as yet unstated, defenses available. Defendants reserve herein
6 the right to assert additional defenses in the event discovery indicates that they would be
7 appropriate.

8 WHEREFORE, Defendants pray for judgment as follows:

- 9 1. That Plaintiff take nothing by reason of the Complaint on file herein;
10 2. For costs of suit incurred herein; and
11 3. For such other and further relief as the court deems just and proper.

12 DATED: April 11, 2025

LEWIS BRISBOIS BISGAARD & SMITH LLP

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14 By: 

15 WILLIAM F. HORSEY

16 Attorneys for Defendants SF MULTIFAMILY
17 POOLS 2-3 (B) OWNER, LLC, and MISSION
18 ROCK RESIDENTIAL CALIFORNIA, INC.
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1 **CALIFORNIA STATE COURT PROOF OF SERVICE**

2 Pikop v. SF Multifamily, et al.

3 San Francisco County Superior Court Case No.: CGC-24-620191

4 STATE OF CALIFORNIA, COUNTY OF SAN FRANCISCO

5 At the time of service, I was over 18 years of age and not a party to this action. My
6 business address is 45 Fremont Street, Suite 3000, San Francisco, CA 94105.

7 On April 11, 2025, I served true copies of the following document(s): **ANSWER OF
8 DEFENDANTS SF MULTIFAMILY POOLS 2-3 (B) OWNER, LLC, AND MISSION
9 ROCK RESIDENTIAL CALIFORNIA, INC.**

10 I served the documents on the following persons at the following addresses (including fax
11 numbers and e-mail addresses, if applicable):

12 Eric L. Lifschitz
13 LIFSCHITZ LAW FIRM
14 345 Franklin Street
15 San Francisco, CA 94102
16 Tel: 415-553-6055
17 Fax: 415-287-0395
18 Email: info@tenantlawaction.com

19 *Attorney for Plaintiff*

20 The documents were served by the following means:

21 ☒ (BY ELECTRONIC SERVICE VIA FIRST LEGAL) I caused the above-entitled
22 document to be served through First Legal at <https://firstlegal.com> addressed to all parties
23 appearing on the electronic service list for the above-entitled case. The service
24 transmission was reported as complete and a copy of the First Legal Filing Receipt
25 Page/Confirmation will be filed, deposited, or maintained with the original document in
26 this office.

27 I declare under penalty of perjury under the laws of the State of California that the
28 foregoing is true and correct.

Executed on April 11, 2025, at San Francisco, California.



Sandra Mack